

Aziz Muhammad. **Versus** The State etc.

08.10.2025. Sardar Zafar Ahmad Lound, Advocate alongwith petitioner.
Mr. Usama Bahdar, Advocate for respondent No.2.
Mr. Ansar Yaseen, Deputy Prosecutor General
alognwtih Nasarullah ASI and Riaz SI/SHO.

2. Actual and factual background of the matter in hand is that respondent No.3 (Nasarullah Nasir SI) got registered case FIR No.12/2025, dated 07.02.2025, with the averments that he alongwith officials was present at Bombly Chowk; that a stool pigeon laid information to the effect that one Saif Ullah son of Shah Jahan had declared his wife Mst. Beeno Mai as “*Kaari*” (suspect of having illicit relations with a man) with his cousin / *chachazaad* Gull Khan s/o Esa Khan, and he had prepared a plot for the commission of murder of his wife Mst. Beeno Mai and he was standing outside of his house armed with pistol 30 bore. In order to save the life of a human being, he (Nasarullah Nasir ASI) reached the house of Saif Ullah alongwith officials at about 11.55 a.m. Meanwhile before their view, Saif Ullah made four successive fire shots with his pistol 30 bore hitting

Mst. Beeno Mai on the front of her chest towards right and left side, right elbow and back of the right palm. She smeared with blood and fell down. Saif Ullah succeeded in fleeing away alongwith pistol entering into bushes. Mst. Beeno Mai was attended but she succumbed to the injuries at the spot.

3. Petitioner Aziz Muhammad happened to be the father of said Mst. Beeno Mai deceased. He instituted his private complaint on 23.06.2025 with the averments that on 07.02.2025, at about 08.00 a.m. he was present in his house alongwith inmates; that meanwhile, respondent No.2 (Saif Ullah) s/o Shah Jahan alongwith two unknown culprits armed with pistols emerged there and made successive fire shots jointly hitting Mst. Beeno Mai on different part of her body due to non-giving of hand of female and fled away on their motorcycles. Motive behind the occurrence was that he/complainant was not willing for the giving the hand of her daughter and daughter was also not intending to contract marriage. Due to said reason, she was murdered. Petitioner proceeded to local police station and reported the matter to police. Police officials, after consultation with each other, chalked out a false and baseless FIR. Police had obtained thumb impression of petitioner on the pretext that he would be impleaded as complainant in the FIR. No police official was present at the spot and police officials leveled false allegation against the daughter of having illicit relations. Mst. Beeno Mai was unmarried female. Petitioner/complainant was an illiterate person. When he got the FIR read by some person, it was transpired that police had played a mischief. On hue and cry raised by the petitioner, certain persons namely Moosa s/o Mehar Bukhsh and Azam s/o Jan Ali attracted there and saw the occurrence.

4. I have heard the learned counsel for the parties as well as learned Deputy Prosecution General Punjab and perused the record with their able assistance.

5. The learned Sessions Judge, Rajanpur, while dismissing the private complaint, rendered the following observation in Para No.5 of his order:-

“In this case the complainant also, prima-facie, wants to favour his close relative/son in law and compound the offence of Qatl-e-Amd of his daughter who was murdered in the name of “Siah Kari” and as per provisions of Section 311 PPC duly mentioned in the FIR (Mark-B) registered on the complaint of police, the complainant cannot be allowed to compound the offence of murder of his daughter in the name of “Siah Kari”. The complainant has filed instant private complaint under Section 302 PPC and he has not mentioned/applied Section 311 PPC in the present complaint and his omission / non-mentioning of Section 311 PPC in the instant complaint suggested to the conclusion that he wants to give favour to his close relative Saif Ullah respondent No.1”.

I also think it appropriate to have a look of the observation, rendered by learned Sessions Judge, Rajanpur in Para No.7 of the impugned order, which reads as under:-

“Although private complainant cannot be dismissed on the ground of delay in filing the same, however, keeping in view the peculiar circumstances of this case mentioned above, delay of about five months in filing of the private complaint has become very material. As the proceedings of murder of Mst. Beeno Mai are already under progress against Saif Ullah respondent No.1/accused initiated by the police, therefore, thus private complaint in view of above said fact has been filed with mala-fide intention and thus the same stands dismissed. File be consigned to record room”.

6. Petitioner got recorded his cursory statement as PW.1. He produced Moosa s/o Mehar Bukhsh as PW.2 and Azam Khan s/o Jan Ali as PW.3. Petitioner/PW.1 reiterated the version, which he had earlier narrated in his private complaint. Both PW.2 & PW.3 also testified on the same lines in their cursory statements.

7. To take the cognizance of an offence in a complaint case, burden of proof at the stage of holding a preliminary inquiry for issuance of process and or summon as the case may be, was much lighter on the complainant and he was required only to establish a prima-facie case, whereas burden of proof upon the prosecution during regular trial was much stringent and the prosecution was required to establish and prove the case beyond reasonable doubt. If any reference in this regard is required, that can be had from “Muhammad Farooq Vs. Ahmad Nawaz Jahangiri and others” (PLD 2016 SC 55). At this stage, court is required to evaluate and appreciate the cursory evidence and other material tentatively. The learned Sessions Judge was not supposed to keep the case set-up in the FIR by a police man and the case set-up by the petitioner/complainant in his complaint into juxta-position to each other and to make deeper appreciation of both the above said versions. Full dress rehearsal of trial is not required at this preliminary stage. Even possibility of accusation turning out to be false or frivolous at trial also should not forbear the Court from issuing the process if material available prima-facie discloses case against the person complained against. Mere delay is not a ground for its dismissal straight away. No limitation has been provided in criminal law for lodging a complaint, therefore, delay in filing a complaint by itself is not fatal except in very exceptional circumstances. Reliance has been placed upon “Noor Muhammad Vs. The State and others” (PLD 2007 SC 9). I am also forfeited by case of “Muhammad Fayyaz Khan Vs. Ajmair Khan and another” (2010 SCMR 105). The learned Sessions Judge, Rajanpur was not competent to comment upon merits of the case till he has recorded the entire evidence, which complainant wished to produce. Dismissal of the complaint by him in haste was not justified. Petitioner/complainant was required only to produce some material to make out the ground for the issuance of the

process against the proposed accused. Truth or falsehood of the contents of the complaint cannot be scrutinized at this preliminary stage. Chance of the acquittal at the conclusion of trial is also not a ground for refusal to issue the process to proposed accused. Private complaint under Section 200 of Cr.P.C. is basically a protest against the accused and investigation agency for their misuse of process of law.

8. When a complainant is not satisfied with the result of the investigation or where Investigating Officer has conducted the investigation not in fair and transparent manner, he may have a resort to Section 200 of Cr.P.C. by filing the complaint in accordance with his own version.

9. In the light of above discussion I am confident to hold that cursory evidence produced by the petitioner / complainant was prima-facie making out a case justifying the summoning of respondent No.2 (Saif Ullah) as accused, as such impugned order dated 18.07.2025, passed by the learned Sessions Judge, Rajanpur being influenced by the fact that an FIR regarding the same occurrence under the authorship of a police man was in the field, was not sustainable in the eye of law, therefore, I set-aside the same and remand the case to learned Sessions Judge, Rajanpur, who shall issue the process to respondent No.2 (Saif Ullah) to appear as accused and proceed further in accordance with law.

10. **Petition accepted. Case remanded.**

**(Tanveer Ahmad Sheikh)
Judge**

Approved for reporting.

Judge